

Defendant opposes the multiplier as unwarranted as enhancers are reserved for exception situations and argues that the plaintiff has not met its burden of showing that the case was novel, difficult, or superlative as to the outcome. (Defendant’s opposition, p. 6, and 17-18). Defendant avers that the plaintiff recycled template pleadings, discovery, and motion used in its practice of high volume Song-Beverly claims, yet billed casework as original or unique. Defendant emphasizes that there was no billing activity for over 23 months, and notes that the case settled in less than a year. (*Id.*).

Given the basic nature of the Song-Beverly claim in this matter; lack of showing of bespoke work demonstrating novel or difficult work required in this matter; high volume and type of claims handled by SLP in Song-Beverly matters that would not present a higher risk in contingency cases or inability to take on other cases; early resolution of the matter that did not require further discovery, motions, depositions; the Court does not find that Plaintiff has demonstrated that a multiplier is warranted in this case. Therefore, the Court DENIES Plaintiff’s request for a 1.35 enhancer.

D. ESTIMATED FURTHER FEES AND COSTS

Plaintiff seeks \$2,450.00³ for time to review Defendant’s opposition papers, prepare a reply brief, and anticipated appearance for this hearing. As noted above, Plaintiff filed a reply brief on June 2 addressing the defense’s opposition. It is unclear whether any appearance will be made and if such an appearance is made, how much time would be expended on the straightforward motion after review of the Court’s analysis on the tentative order.

The defendant opposes the motion for this amount on similar grounds stated above.

The Court DENIES the request for \$2,450.00, but GRANTS \$1,190.00 for two hours of time at the hourly rate of \$595.00 for time spent on reviewing, preparing and submitting the reply brief.

IV. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$29,250.82 that consists of \$26,217.26. in attorney’s fees and \$1,843.56 in costs; \$0 for any multiplier as the request for a 1.35 enhancer is DENIED; and \$1,190.00 for preparing and filing reply brief.

Moving party to prepare the formal Order.

Calendar Lines # 5
Case Name City and County of San Francisco vs Matt Pear et al
Case No. 25CV468882
Motion to Bifurcate Trial of Complaint for Declaratory Relief

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

The underlying dispute arises from an 80-foot wide strip of land California (“The Pipeline Property”) bisecting the property located at 555 Showers Avenue and 398 Ortega Avenue in Mountain View, owned by Defendants Pear’s family since the early 1900s and currently Defendants Mark Pears and Matt Pears (“the Pears” or “Cross-Complainants”). (Plaintiff’s Complaint and Declaration of Matt Pearl). In 1949, the City’s Board of Supervisor adopted a resolution to acquire the Pipeline Property for the operation of underground water pipelines as part of the City’s Hetch Hetchy water system. (CCSF’s Complaint). The City filed a complaint against the Pears’

³ The Court notes that this amount reflected in Plaintiff’s reply brief is a reduction from the \$4,000.00 that the plaintiff originally sought as an estimated cost in the moving papers.

grandparents to take the Pipeline Property by way of eminent domain. In 1959 the Pears' grandparents and City reached a resolution with the Pears' grandparents conveying the Pipeline Property to the City through a deed ("1951 Deed"). Since then, the Pipeline Property bisected the Pipeline Property: north parcel and south parcel. The 1951 deed covered certain rights to use the surface of the Pipeline property. (CCSF's Complaint and Declaration of Pear). The Pears' family used the surface for roadways, parking, and landscaping (CCSF's Complaint). During the 1960s, the Pears sought to expand retail use, parking, and landscaping. (*Id.*). A dispute between the Pears and City arose, which was ultimately resolved with a 1967 Permit allowing additional parking and landscaping. (*Id.*). Currently, the north parcel is leased to the operation of Whell Works automobile maintenance and repair shop, and the south parcel is leased to a Target retail store and pharmacy. (*Id.*).

In 2012, the City sought to renegotiate the 1967 Permit and demanded that the Pears pay the fair market value for use of the Pipeline Property. (*Id.*). The Pears objected and CCSF threatened to fence off the property. (*Id.*). This dispute resulted in litigation and a trial was held in March 2017. On July 24, 2017, a judgment was entered in favor of the Pears, confirming their right to use the Pipeline Property as described. This decision was appealed and resulted in a published Court of Appeal decision in *Pear v. City and County of San Francisco* (2021) 67 Cal.App.5th 61. The Court of Appeal held that the Pearls reserved the right to use the Pipeline Property for roadways, grass and other landscaping; Wheel Works operations; and commercial use Wheel Works and Target and for their patrons. (*Id.*). The Appellate Court held that the existing long-term parking area comprising of 75 percent of the Pipeline Property fell outside of the scope of the reserved rights, but allowed for some level of "incidental parking" while limiting the extent of parking allowed altogether. (Cross-Complaint).

In August 2024, the Pears submitted San Francisco with a redesign of the striped parking on the Pipeline Property, reducing the spaces from 98 to 61 to conform with the Court of Appeal's decision. (*Id.*). The Pears provided that the redesign limits the usage of spaces for short-terms stopping for the purposes of pick up and drop off incident to the roadway proving ingress and egress over the Pipeline Property. (*Id.*). However, Cross-Defendants CCSF assert that the rights reserved to the Pears do not include commercial uses or incidental parking without financial terms. (*Id.*).

B. RELEVANT PROCEDURAL BACKGROUND

On June 23, 2025, CCSF filed a Complaint asserting a declaratory relief against the Pears, seeking clarification on how to interpret the 1951 Deed, including the scope of parking permitted under the Deed, if any, and installing barricades fencing off the Pipeline Property.

On August 26, 2025, Defendants Pears filed an Answer and Cross-Complaint alleging seven causes of action: (1) writ of mandamus, enforcement of the California Public Records Act ("CPRA") and/or San Francisco Sunshine Ordinance ("Sunshine Ordinance"); (2) declaratory relief, enforcement of the CPRA and Sunshine Ordinance; (3) breach of implied covenant of good faith and fair dealing regarding THE 1951 Deed; (4) anticipatory breach of contract as to the permit; (5) inverse condemnation; (6) violation of due process under 42 U.S.C. section 1983; and (7) declaratory relief.

On October 30, 2025 CCSF filed a Special Anti-SLAPP Motion to Strike under Code of Civil Procedure section 425.16 four of the Cross-Complaint's Causes of action: third cause of action for breach of covenant of good faith and dealing; fourth cause of action for anticipatory breach; fifth cause of action for inverse condemnation; and sixth cause of action for violation of due process. CCSF asserted that all discovery was stayed pending the motion. Cross-Complaints opposed the motion. CCSF filed a demurrer on November 4, 2025, which the Pears opposed. The Anti-SLAPP motion was originally set for hearing on July 21, 2026 and was advanced to January 6, 2026 by stipulation of the party.

On January 6, 2026, the Honorable Shella Deen heard CCSF's Demurrer and Anti-SLAPP motion. On January 27, 2026, the Honorable Deen entered a ruling on CCSF's Anti-SLAPP Motion, granting and denying in part; and overruling CCSF's demurrer as to the Defendants cross-Complaints as to the first and fourth causes of action, and sustaining the demurrer as to the cross-complaint's fifth and sixth causes of action, with 20 days' leave to amend. On February 19, 2026, the Defendants filed a First Amended Complaint.

On March 20, 2026, CCSF filed a notice of appeal from the January 27, 2026 Order regarding CCSF'S Anti-SLAPP Motion. Defendants also filed an appeal. CCSF asserts that under Code of Civil Procedure section 916, the appeal on its Anti-SLAPP Motion to strike parts of the Pears' Cross-Complainant imposes a stay of the entire action, including its own Complaint.

Defendants/Cross-Complainants oppose this proposition, and on April 22, 2026, Cross-Complainants Pears filed a motion to bifurcate trial of Complaint for Declaratory Relief under Code of Civil Procedure sections 1048, 1060, 598, 1062a. The motion was accompanied by a proof of service indicating mail and electronic mail service on that same day. Defendants Pears seek an order bifurcate the complaint for declaratory relief and setting a bench trial on the Complaint pending appeal of the Anti-SLAPP order as that motion was limited to Defendants Pears cross-complaint.

Plaintiff/Cross-Defendants CCSF opposed the motion and filed opposition papers on May 26, 2026. CCSF argues that the court lacks any jurisdiction to hear the present motion under Code of Civil Procedure section 916 as the appeal stays the action.

Defendants filed a reply brief on June 2, 2026 rejecting CCSF's argument that an automatic stay applies in this matter.

The Court has carefully reviewed the following: Defendants notice motion to bifurcate (totaling 4 pages); Memorandum of Points and Authorities in support of bifurcation (totaling 18 pages); Declaration of Matt Pear in support of bifurcation and attached Exhibit A (totaling 7 pages); Declaration of Angela in support of bifurcation and attached Exhibits 1-9 (totaling 117 pages); CCSF's Opposition (totaling 11 pages); Declaration of Kelly Manion in support of Plaintiff's opposition and attached Exhibit A (totaling 18 pages); Declaration of Ari Baruth in support of Plaintiff's opposition and attached Exhibit B (totaling 12 pages); Defendants Reply brief (totaling 14 pages); and the pleadings.

II. LEGAL STANDARD

A. STAY OF PROCEEDINGS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 916(A)

Pursuant to Code of Civil Procedure section 916(a):

“Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (Code of Civ. Proc., § 916, subd. (a)).

The purpose of section 916(a) “is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.” (*Elsea v. Saberi* (1992) 4 Cal. App. 4th 625,

629). To accomplish this purpose, the California Supreme Court has stated: [S]ection 916, subdivision (a) stays all further trial proceedings 'upon the matters embraced' in or 'affected' by the appeal. In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results. “[W]hether a matter is 'embraced' in or 'affected' by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the 'effectiveness' of the appeal.” (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381).

The trial courts also possess “both the inherent authority and responsibility to fairly and efficiently administer all of the judicial proceedings that are pending before it. (*People v. Engram* (2010) 50 Cal. 4th 1131, 1146). The court's inherent authority includes “the power . . . to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. How this can best be done calls for the exercise of judgment, which must weigh competing interests and maintain an even balance.” (*Briggs v. Brown* (2017) 3 Cal. 5th 808, 852 (quoting *Landis v. North American Co.*, (1936) 299 U.S. 248, 254-255, “[A] stay gives effect to the general rule that a court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.”).

B. SEPARATE TRIALS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 1048(B)

Code of Civil Procedure section §1048(b) provides, as follows, “ The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code of Civ. Proc., § 1048, subd. (b)).

Trial courts have wide discretion in deciding the sequence of issues for trial. (*See* Code Civ. Proc., § 1048; Evid. Code, § 320; *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 504 [“trial courts have broad discretion to determine the order of proof in the interests of judicial economy”]).

“The major objective of bifurcated trials is to expedite and simplify the presentation of evidence.” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888). Bifurcation frequently occurs when the determination of one issue, such as an affirmative defense, renders other issues moot. (*Buran Equipment v. H& C Investment Co.* (1983) 142 Cal.App.3d 338, 343-344). Trial courts also often bifurcate equitable and legal issues, resolving the issues of equity first in order to promote judicial economy. (*Darburn Enters, Inc. v. San Fernando Community Hosp.* (2015) 239 Cal.App.4th 399, 408-409).

It is well settled law that an appeal of ruling denying a special motion to strike automatically “stays all further trial court proceedings on the merits upon the causes of action affected by the motion.” (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 186). In *Varian Medical Systems, Inc.*, the California Supreme Court addressed the issue of whether an appeal from the denial of a special motion to strike under the anti-SLAPP statute effects an automatic stay of the trial court proceedings. The Court concluded that the automatic stay applied to stay all further trial court proceedings on causes of action affected by the anti-SLAPP motion, and that the trial court had accordingly lacked subject matter jurisdiction during the pendency of appeal, so that a judgment for plaintiffs was void. “In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results....A trial court proceeding also affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.” (*Varian Medical Systems, Inc. v. Delfino*, *supra*, 35 Cal.4th at 189).

As a general rule,

“the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” [Citation.] The purpose of the automatic stay provision of [Code of Civil Procedure] section 916, subdivision (a) “is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.” [*Varian Medical Systems, Inc. v. Delfino, supra*, 35 Cal.4th at 189).

Effectively, section 916(a) “stay” means that, upon timely filing of a notice of appeal, the trial court is *divested of power* to act on matters “embraced in” or “affected by” the appealed judgment or order: Jurisdiction over the appealed matters *shifts to the court of appeal* and is *terminated in the trial court*; and the trial court’s power to *enforce, vacate or modify* the appealed judgment or order is *suspended* while the appeal is pending. [Citations.] (Eisenberg, et al., Cal. Practice Guide: Civ. Appeals and Writs (The Rutter Group December 2023 Update) ¶ 7:2, emphasis in original). Indeed, “[f]urther trial court proceedings in contravention of the [section] 916 stay are *in excess of the court’s jurisdiction in its “fundamental sense”* and thus *void[.]*” (*Ibid.*, emphasis in original.)

C. ORDER TO PROCEED WITH TRIAL UNDER CODE OF CIVIL PROCEDURE SECTION 598

Pursuant to Code of Civil Procedure section 598:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof, and the decision of the court, or the verdict of the jury upon such issue so tried is in favor of any party on whom liability is sought to be imposed, judgment in favor of such party shall thereupon be entered and no trial of other issues in the action as against such party shall be had unless such judgment shall be reversed upon appeal or otherwise set aside or vacated. If the decision of the court, or the verdict of the jury upon the issue of liability so tried shall be against any party on whom liability is sought to be imposed, or if the decision of the court or the verdict of the jury upon any other issue or part thereof so tried does not result in a judgment being entered pursuant to this chapter, then the trial of the other issues or parts thereof shall thereafter be had at such time, and if a jury trial, before the same or another jury, as ordered by the court either upon its own motion or upon the motion of any party, and judgment shall be entered in the same manner and with the same effect as if all the issues in the case had been tried at one time. (Code of Civ. Proc., § 598).

D. DECLARATORY RELIEF UNDER CODE OF CIVIL PROCEDURE SECTION 1060 AND 1062.3(A)⁴

Pursuant to Code of Civil Procedure section 1060, declaration relief arises when:

⁴ Cross-Complainant Pears refers to California Code of Civil Procedure section 1062a, but effective 2025, this section was added by renumbering section 1062.3.

“Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought.”

“[U]nder California rules, an actual controversy that is currently active is required for such relief to be issued, and both standing and ripeness are appropriate criteria in that determination.” (*Travers v. Louden* (1967) 254 Cal.App.2d 926, 931). “[Declaratory relief] serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*).

Section 1062.3(a) provides:

“Except as provided in subdivision (b), actions brought under the provisions of this chapter shall be set for trial at the earliest possible date and shall take precedence over all other cases, except older matters of the same character and matters to which special precedence may be given by law.” (Code of Civ. Proc., § 1062.3(a)).

III. ANALYSIS

Cross-Complainants Pears assert that a cross-complaint creates an action distinct and separate from the complaint. (Cross-Complainants, Memorandum of Points and Authorities, p. 8). Thus, regardless of how the Court of Appeal rules on the Anti-SLAPP appeal, the Cross-Defendant’s Complaint will remain. (*Id.*). Thus, Cross-Complainants seek that an appeal does not trigger an automatic stay on the entire proceedings, namely CCSF’s Complaint. (*Id.*). Thus, the Cross-Complainant argues that the Court can sever CCSF’s Complaint and order the parties proceed to trial on the Complaint pending appeal on the Anti-SLAPP motion that relates to the Cross-Complaint. (*Id.*). Therefore, Cross-Complainants avers that the court can and should sever and order parties to proceed with trial under Code of Civil Procedure sections 1048(b) and 598 (*Id.*, at p. 8-9). Cross-Complainants assert that *Varian Medical Systems, Inc.*, is inapplicable in this case as the appeal does not affect the merits of the Complaint. (*Id.*, at p. 11).

Cross-Complainants also argue that because the Cross-Defendant’s Complaint comprises of declaratory relief under Code of Civil Procedure section 1060, which addresses future rights and actions. (Cross-Complainants, Memorandum of Points and Authorities, p. 9). Thus, regardless of the status of the Pears’ Cross-Complaint addressing CCSF’s past wrongs, and regardless of CCSF’s Anti-SLAPP appeal, the Court should declare the parties’ rights in the Pipeline Property and not execute on the rights. (*Id.*).

The Pears emphasize that Anti-SLAPP appears have been recognized by the California Supreme Court for the potential of abuse as trial strategy to delay litigation. (*Id.*). Cross-Complainants point that further delay of litigation presents hardship for the Pears, who continue to suffer from uncertainty over the Reserved Rights and Permits rights of the Pipeline Property. (*Id.*). Cross-Complaints claim to have claimed prejudice by the delay as the continued litigation and stay has adversely impacted its ability to renegotiate contracts with Target.

Cross-Defendants CCSF repudiates Cross-Complainants assertions and emphasizes that the appeal of the Anti-SLAPP motion both parties trigger an automatic stay pursuant to section 916(a) and *Varian Meical Systems, Inc.* (Cross-Defendant's Opposition, p. 2). Cross-Defendants avers that that the Pears specifically assert the Cross-Complaint as a defense to the Complaint and both pleadings arise from the same facts and documents. (*Id.*). Thus, bifurcation would defeat the purpose of an Anti-SLAPP motion to avoid unnecessary litigation and conflict with the purpose of that statute. (*Id.*). Cross-Defendants CCSF emphasizes that this court lacks jurisdiction pending the appeal pursuant to section 916(a). Bifurcating the complaint and setting a trial on the Complaint “. . . would impermissibly require the Court and the parties to litigate issues specifically raised it the appeals including: 1) the validity of the Pears' legal contentions, 2) the factual issues underpinning both the Complaint and Cross-Complaint, and 3) litigation privileged communication. Any ruling in favor of the Pears at the trial court level on these issues is irreconcilable with a ruling by the appellate court in favor of the City.” (*Id.*, at p. 5). CCSF asserts that if it prevails on its Anti-SLAPP appeal, the Pears will be barred from asserting the defenses raised in the Complaint and Cross Complaint. (*Id.*).

Cross-Defendants CCSF asserts that proceeding with the Complaint would require the court to adjudicate facts that underpin the claims on appeal as the Complaint and Cross-Complaint allege many of the same facts including: location of the Pipe Property; history of its purchase; existence of the Deed and Permit; ruling in *Pear v. CCSF*; and the City's rejection of the Pear's redesign of the parking scheme. (Cross-Defendant's Opposition, p. 6). Due to the overlapping nature of the allegations in both sets of pleadings, bifurcating and setting a trial on CCSF's Complaint would unavoidable require assessing the weight and facts alleged in the Cross-Complaint. (*Id.*). Thus, Cross-Defendants CCSF contends that under *Varian Medical Systems, Inc.*, adjudication on the Complaint explicitly goes “to the merits of the issues involved in the main issue.” (*Id.*, citing, *Varian Medical Systems, Inc. v. Delfino, supra*, 35 Cal.4th at 193). Specifically, proceeding with the Complaint would require the court to potentially consider litigation privileged communication, which is the basis of the Pears' SLAPP claims. (*Id.*).

Cross-Defendants CCSF contend that even though the Anti-SLAPP motion was filed on the Cross-Complaint rather than the Complaint, the merits of the underlying declaratory relief claim were “embraced” or “affected” by the pending appeal and thus requires a stay on trial court proceedings. (*Id.*, at p. 6-7, citing *City of Santa Monica v Stewart* (2005) 126 Cal.App.4th 43, 79-80 and *Young v. Tri-City Healthcare District* (2012) 210Cal.App.4th 51-52). CCSF avers that the Complaint snot a collateral matter to the issues raised in the Anti-SLAPP motion to the Cross-Complaint based on the same subject matter at issue. (*Id.*). CCSF rejects the Pears argument that the Complaint is ancillary and attacks the basis of its cases as predating the anti-SLAPP statute (referring to the Pears' reference to *Botsford v. Pascoe* (1979) 94 Cal.App.3d, 62) and not involving Code of Civil Procedure 916(a) and asserts that the trial court may not take further action that would alter the status quo of claims subject to an Anti-SLAPP motion and Appeal. (*Id.* at p.8.). CCSF contends that the Pears fail to cite authority providing the court to sever claims that conflict with the Anti-SLAPP appeal. (*Id.*, at p. 9). Rather, CCSF asserts that sections 1048(b), 598, 1060, 1062.3(a) provide this court with discretion to bifurcate and set trial on the Complaint pending the appeal and trumping section 916(a). (*Id.*). CCSF asserts that the stay also further promotes the interest of justice and judicial economy as it require the court to revisit the same testimony and documents and increase the chance of inconsistent outcomes and unnecessary duplication. (*Id.*, at p. 10).

Cross-Complainants rejects Cross-Defendants CCSF's assertion that bifurcation and trial setting would be an adjudication on the merits. (Cross-Complainants' Reply, p. 2). The Pears assert that because a trial of the Complaint will occur regardless of the outcome of the Anti-SLAPP appeal, the complaint is ancillary to the appeal and because appeal does not stay ancillary matter, it does not stay trial on the Complaint. (*Id.*, at p. 3). Despite seeking a jury trial, the Pears argue that the court may set the Complaint for a bench trial. (*Id.*). Cross-Complainants also repudiate that Cross-Defendants interpretation of *Varian Medical Systems, Inc. v. Delfino, supra*, 35 Cal.4th 180 (unlike in this matter, *Varian* dealt with an Anti-SLAPP motion that encompassed all of the

plaintiff's causes of action); *City of Santa Monica v Stewart* (2005) 126 Cal.App.4th 43 (unlike in this matter, *City of Santa Monica* involved a motion to strike the entirety of a cross action); and *Young v. Tri-City Healthcare District* (2012) 210 Cal.App.35 (unlike in this matter, *Young* involved a motion for reconsideration and did not involve any cross-action or cross complaint) as factually distinguishable. (Cross-Complainants' Reply, p. 3-5).

The Court finds that given that there are so many overlapping facts such as the location of the Pipe Property; purchase history; existence of the and terms of the 1951 Deed and Permit; ruling in *Pear v. CCSF*; and dealings regarding the Cross-Complainants 2024 redesign and submission of the parking scheme in accordance with *Pear v. CCSF* ruling and the City's rejection that are present in the Complaint and Cross Complaint as well as privileged litigation communications involved in the Cross-Complaint in the appeal that may require a court to consider such evidence if the Complaint was bifurcated, the court finds that the facts are inextricably intertwined. The court notes that the purpose of section 916(a) is to protect the jurisdiction of the appellate courts by preserving the status quo until the appeal is decided. To court cannot bifurcate the Complaint as underlying issues are embraced or affected by the appeal of the Anti-SLAPP motion of the Cross-Complaint. The court takes into consideration the interest of judicial economy, efficient, and justice to promote a consistent result as best being served by a stay.

IV. CONCLUSION

Based on the foregoing, Cross-Complainants Pears motion to bifurcate is DENIED. The Court will prepare the formal Order.

Calendar Lines # 6

Case Name Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al

Case No. 25CV481376

Motion to Confirm Arbitration Award

I. BACKGROUND

On April 17, 2026, Petitioner Twomagnets LLC d/b/a Clipboard Health ("Clipboard Health") filed this motion to confirm a September 5, 2025 arbitration award in favor of Clipboard Health and against respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC. The motion was accompanied by a proof of service indicating overnight service and electronic service to Altitude Health Service and Palos Heights Rehabilitation—nonparties—on that same day.

On May 1, 2026, petitioner submitted a Notice of Errata, submitting that the attached proof of service to the nonparties was in error and submitted proof of service to the respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC indicating mail service on April 17, 2026 as well as proof of service of the notice of errata on May 1, 2026 via mail service.

The motion is unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: Petitioner Clipboard Health's Notice and Memorandum of Points and Authorities for a Motion to Confirm Arbitration Award (totaling 11 pages); Declaration